

Devendra Arya v. State of U.P.

Allahabad High Court · Division Bench · 26 August 2019 · Writ-C No. 26247 of 2019 · Writ-C No. 26247 of 2019 · **Writ disposed; objections to EE under cl. 8.1; recovery to abide.**

HEADNOTE

On a challenge to recovery of Rs. 1,62,202 founded on a provisional assessment treated as final, and after the licensee served that assessment only at the hearing, the Allahabad High Court disposed of the writ by allowing the consumer two weeks to file objections and directing the Executive Engineer to pass a fresh order under Clause 8.1(1)(b)(iv) of the U.P. Electricity Supply Code, 2005; recovery to abide that order.

FACTUAL SUMMARY

The petitioner challenged a recovery notice dated 29 May 2019 for Rs. 1,62,202 claimed as electricity arrears after a provisional assessment was treated as final. He contended that the provisional assessment had never been served, so he had no chance to dispute its correctness or to deny unauthorised use. During the hearing, counsel for the distribution licensee served a copy of the provisional assessment dated 22 February 2018. The Court then disposed of the writ without deciding the assessment on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(b)

provisional assessment treated as final; objections and recovery

HOLDING

Where recovery was founded on a provisional assessment treated as final and the assessment was served only at the hearing, the Court permitted the consumer to file objections within two weeks and directed the Executive Engineer, if objections were filed, to deal with them and pass a fresh order in accordance with Clause 8.1(1)(b)(iv) of the U.P. Electricity Supply Code, 2005 as expeditiously as possible, preferably within one month; the recovery was to abide that order. The writ was disposed of without a merits determination of unauthorised use or of the demand. ¶ 1

FLAG court cited Clause 8.1(1)(b)(iv); numbering is ambiguous relative to Code cl. 8.1(b)

PRINCIPLE TAGS

opportunity-before-final-assessment On a challenge to recovery of Rs. 1,62,202 founded on a provisional assessment treated as final, and after the licensee served that assessment only at the hearing ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER USED ELECTRICITY IN AN UNAUTHORISED MANNER, AND THE CORRECTNESS OF THE RS. 1,62,202 ASSESSMENT.

Left to the Executive Engineer on objections under the clause cited as 8.1(1)(b)(iv). ¶ 1